

25VECV06691 25VECV06691

County: los-angeles

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Case Number: 25VECV06691 Hearing Date: August 31, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Richard Groscost,

Plaintiff,

v.

Jaguar

Land Rover North America, LLC

Defendants.

Case Number Department

25VECV06691 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

to Enforce CCP Section 871.26(j)(4)

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

or about August 16, 2022, Plaintiff Richard Groscost ("Plaintiff") purchased a 2022 Land Rover Sport (the "Vehicle"). (Complaint ¶ 4.) The Vehicle was defective. (Complaint ¶ 10.)

On

November 21, 2025, Plaintiff filed a complaint against Defendants Jaguar Land Rover North America, LLC, and Does 1 through 10, alleging causes of action for: (1) breach of express warranty obligations; (2) breach of implied warranty obligations; (3) failure to repair in a good and workmanlike manner; and (4) failure to repair within thirty days.

On

May 15, 2026, Plaintiff filed a motion to enforce Code of Civil Procedure, section 871.26(c) (the "First Motion"). On June 18, 2026, the court granted the First Motion, ordered Defendant to produce its person most qualified for deposition within fifteen days of the order, and granted Plaintiff's request for monetary sanctions in the sum of \$2,500.00 to be paid by Defendant's counsel of record to Plaintiff's counsel within fifteen days of the order. (06/18/26 Minute Order pp. 3-4.)

On

July 22, 2026, Plaintiff filed a motion to enforce Code of Civil Procedure section 871.26(j)(4) (the "Motion"). On August 18, 2026, Defendant filed an opposition. On August 24, 2026, Plaintiff filed a reply.

II.

LEGAL

STANDARD

Code

of Civil Procedure section 871.26, subdivision (c)(2) states:

Within 120 days after
the filing of the answer or other responsive pleading, all parties have the
right to conduct initial depositions, each not to exceed two hours, of the
following deponents:

[¶] . . . [¶]

(2) The defendant, and
if the defendant is not a natural person, the person who is most qualified to
testify on the defendant's behalf. This deposition shall be limited to the
topics listed in subdivision (i).

Code
of Civil Procedure section 871.26, subdivision (j)(2) and (4) state:

(j) Unless the
party failing to comply with this section shows good cause, notwithstanding any
other law and in addition to any other sanctions imposed pursuant to this
chapter, a court shall impose sanctions as follows:

[¶] . . . [¶]

(2) A
one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's
attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the
defense attorney respectively, paid within 15 business days for failure to
comply with the provisions relating to depositions as prescribed in subdivision
(c).

[¶] . . . [¶]

(4) For a
manufacturer's or defendant's repeated noncompliance with subdivision (b), (c),
or (d), a court shall order that evidentiary sanctions attach precluding the
manufacturer or defendant from introducing evidence at trial regarding whether
the motor vehicle had a nonconformity that substantially impaired the use,
value, or safety of the motor vehicle, or whether the motor vehicle was
repaired to match the written warranty after a reasonable number of
opportunities to do so.

III.

DISCUSSION

Plaintiff

moves for an order enforcing Code of Civil Procedure section 871.26, subdivision (j)(4) and imposing evidentiary sanctions on Defendant after Defendant failed to produce its person most qualified (“PMQ”) for deposition following the court’s June 18, 2026, order. (Motion p. 4.) Plaintiff also moves for monetary sanctions under Code of Civil Procedure sections 871.26, subdivision (j)(2) and 2023.30, subdivision (a). (Motion p. 2.)

In

opposition, Defendant argues the Motion should be denied because Plaintiff failed to file a separate statement with the Motion. (Opposition pp. 5-6.) Defendant also argues sanctions are not warranted here because Defendant has not repeatedly failed to comply with the statute and Defendant demonstrated good cause by offering July 30, 2026, and September 3, 2026, as deposition dates. (Opposition pp. 7-8.) Defendant argues evidentiary sanctions are not warranted here because Defendant has not engaged in the type of egregious, bad faith misconduct warranting such sanctions. (Opposition p. 9.) Finally, Defendant argues Plaintiff is not entitled to additional monetary sanctions under Code of Civil Procedure section 2023.030, subdivision (a) or section 871.26, subdivision (j)(2). (Opposition p. 10.)

In

reply, Plaintiff concedes Defendant paid the monetary sanctions. (Reply pp. 1-2.) Plaintiff argues they were not required to serve a separate statement because California Rules of Court, rule 3.1345 does not apply to the Motion. (Reply p. 2.) Plaintiff repeats their arguments evidentiary sanctions are mandatory here because Defendant has not produced its PMQ for deposition. (Reply p. 2.)

Defendant

cites California Rules of Court, rule 3.1345(a) and argues the Motion should be denied because Plaintiff failed to file and serve a separate statement. (Opposition p. 5.) California Rules of Court, rule 3.1345(a) states a motion for issue or evidentiary sanctions requires a separate statement. Plaintiff’s notice of motion also states “[t]his Motion is further based upon this Notice, the attached Memorandum of Points and Authorities in support thereof, the concurrently filed Separate Statement, the Declaration of Justin C. Hung, and

all pleadings, records, and papers on file herein, as well as such other oral arguments as may be presented at the hearing on this Motion.” Thus, it appears to the court that Plaintiff intended to file and serve a separate statement but did not do so.

The

court is not persuaded a separate statement is necessary here. Although Plaintiff moves for evidentiary sanctions, California Rules of Court, rule 3.1345(b)(1) states “[a] separate statement is not required under the following circumstances: (1) When no response has been provided to the request for discovery . . .” Here, there is no discovery response that is at issue in the present Motion. Thus, the court will consider the Motion.

On

June 18, 2026, the court found Defendant failed to comply with Code of Civil Procedure section 871.26, subdivision (c) by failing to produce its PMQ for deposition by the deadline. (06/18/26 Minute Order p. 3.) The court ordered Defendant to produce its PMQ for deposition within 15 days of the order. (06/18/26 Minute Order pp. 3-4.)

Defendant’s

counsel submits a declaration stating they paid Plaintiff’s counsel the monetary sanctions before the deadline. (Cho Declaration ¶¶ 4-5.) Defendant’s counsel does not dispute that Defendant has failed to produce its PMQ for deposition but states its office “has maintained a consistent willingness to present a witness.” (Cho Declaration ¶ 8.)

The

court appreciates that Defendant’s counsel is willing to comply with the court’s order. But willingness to produce its PMQ for deposition is not what Code of Civil Procedure section 871.26, subdivision (c), or what this court’s order, require. Code of Civil Procedure section 871.26, subdivision (c) requires Defendant to produce its PMQ for initial deposition within 120 days of Defendant filing the answer or other responsive pleading. As the court noted in its July 18, 2026, order, that deadline expired on May 5, 2026. (06/18/26 Minute Order p. 3.) The court’s June 18, 2026, order set another deadline, that Defendant produce its PMQ for the required deposition within 15 days of that order. (06/18/26 Minute Order pp. 3-4.) That deadline expired on July 3, 2026. No deposition had occurred by that date. Defendant’s opposition cites a “scheduling delay . . .” (Opposition p. 10.) A “scheduling delay” is not good

cause for Defendant's failure to comply with Code of Civil Procedure section 871.26, subdivision (c) or this court's order.

Defendant

states it offered July 30, 2026, as a date for the deposition and subsequently offered September 30, 2026, as the deposition date. (Opposition p. 8.) In the court's June 18, 2026, order, it noted Defendant offered the deposition date the same date Defendant filed its opposition to the First Motion. (06/18/26 Minute Order p. 2.) Similarly, Defendant offered the September 3, 2026, date the same day Defendant filed its opposition to the present Motion. (Cho Declaration Ex. A pdf p. 5.) Defendant appears to be engaging in the practice of waiting until the last possible moment to offer untimely deposition dates. The court finds that Defendant's offering deposition dates does not constitute good cause for Defendant's failure to comply with Code of Civil Procedure section 871.26, subdivision (c) or this court's order

Evidentiary

sanctions under Code of Civil section 871.26, subdivision (j)(4) are not available here. Under that code section, evidentiary sanctions are mandatory for "repeated noncompliance with subdivision (b), (c), or (d) . . ." (Code Civ. Proc., § 871.26, subd. (j)(4).) Here, Defendant failed to comply with Code of Civil Procedure section 871.26, subdivision (c) and failed to comply with the court's June 18, 2026, order. This is not repeated noncompliance with Code of Civil Procedure section 871.26, subdivisions (b), (c), or (d).

Code

of Civil Procedure section 871.26, subdivision (j)(2) contemplates "[a] . . . (\$2,500) sanction . . ." This language indicates the court may impose the sanction only once. The court already ordered Defendant's counsel to pay sanctions under Code of Civil Procedure section 871.26, subdivision (j)(2). (06/18/26 Minute Order p. 4.) Additional sanctions under that section are not available.

"A

court may invoke its independent authority to impose sanctions under sections 2023.010 and 2023.030 only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision." (City of Los Angeles v. PricewaterhouseCoopers, LLP (2024) 17 Cal.5th 46, 74.)

Code

of Civil Procedure section 871.26 discusses sanctions that may be imposed when a defendant fails to produce its PMQ for deposition under that section. This abuse is not unusual, a pattern, or not already addressed by a relevant sanctions provision.

IV.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: August 31, 2026 _____ Hon. Eric Harmon

Judge of the Superior

Court